

SUPREME COURT OF THE STATE OF NEW YORK
COUNT OF KINGS

-----X Index No: 21383/2013
LUISA N. FELIZ,

Plaintiff,

**SUPPLEMENTAL
SUMMONS**

Plaintiff designates Kings
County as the place of trial.

-against-

The basis of venue is:

THE CITY OF NEW YORK, POLICE OFFICER JUAN REYES
And POLICE OFFICER JANE DOE, individually and in their
Official capacity as New York Police Officer, the name "Jane
Doe" being fictitious, as the true name is presently unknown,

Plaintiff Residence

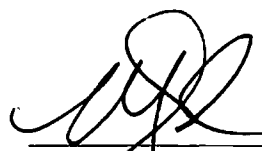
Plaintiff resides at:
530 Herzl Street, #A9
Brooklyn, New York 11212
County of Kings

Defendants,

-----X
To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
September 27, 2021



Matthew Segal, Esq.
Segal Law Firm, PC
Attorneys for Plaintiff
LUISA N. FELIZ
950 Third Avenue, 11th Floor
New York, NY 10022
(646) 810-3337

TO:

The Comptroller of the City of New York
Municipal Building - New York, New York 10007

NYC Police Department
Municipal Building - New York, New York 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNT OF KINGS

-----X
LUISA N. FELIZ,

Index No: 21383/2013

**AMENDED
VERIFIED COMPLAINT**

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER JUAN REYES
And POLICE OFFICER JANE DOE, individually and in their
Official capacity as New York Police Officer, the name "Jane
Doe" being fictitious, as the true name is presently unknown,

Defendants,
-----X

Plaintiff **LUISA N. FELIZ**, by her attorneys **SEGAL LAW FIRM, PC**,

complaining of the Defendants, respectfully alleges, upon information and belief:

PARTIES

1. Plaintiff **LUISA N. FELIZ** is an individual residing at 530 Herzl Street, #A9, City of Brooklyn, County of Kings and State of New York.
2. Defendant **THE CITY OF NEW YORK** is a municipal corporation duly incorporated and existing pursuant to the laws of the State of New York.
3. Defendant **THE CITY OF NEW YORK** has established and maintained the New York City Police Department as a department of the City.
4. Upon information and belief, Defendant **POLICE OFFICER JUAN REYES** is a male New York City Police Officer assigned to the 75th precinct on or about December 10, 2012.
5. Upon information and belief, Defendant **POLICE OFFICER JANE DOE** is a female New York City Police Officer assigned to the 75th precinct on or about December 10, 2012.

6. On March 6, 2013, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and the place where the injuries and damages were sustained, together with Plaintiff's demands for adjustment thereof was duly served on Plaintiff's behalf on the Comptroller of Defendant **THE CITY OF NEW YORK** and that, thereafter, said Comptroller for Defendant **THE CITY OF NEW YORK** refused or neglected for more than thirty (30) days, and up to the commencement of this action, to make any adjustment or payment thereof, and that, thereafter, and within the time provided by law, this action was commenced.
7. On July 8, 2013, pursuant to General Municipal Law § 50(h), a hearing was held at the office of a designated agent.

FACTS

8. Plaintiff incorporates by referencing all previous paragraphs herein.
9. On December 10, 2012, at approximately 10:00 PM, Plaintiff **LUISA N. FELIZ** was lawfully operating her motor vehicle on Sutter Avenue, at or near the intersection of Euclid Avenue, in the County of Kings, City of Brooklyn and State of New York.
10. Plaintiff **LUISA N. FELIZ** was instructed to pull her motor vehicle over, as she willingly complied to said instructions, she was approached by Defendant **POLICE OFFICER JANE DOE**, a uniform New York City Police Officer who demanded her driver's license which she produced.
11. Plaintiff **LUISA N. FELIZ** was then approached by Defendant **POLICE OFFICER JUAN REYES** who without reasonable suspicion, without probable cause and without any threat or reasonable belief of unlawful activity, demanded she exit the motor vehicle and proceeded to

unlawfully arrested and handcuffed her without any indication as to what she has done wrong and/or what, if any, crime(s) she had committed.

12. When Plaintiff **LUISA N. FELIZ** was handcuffed in the patrol vehicle, the handcuffs were too tight, she pleaded and requested for the officers to loosen her handcuffs, the officers refused to loosen them, as a result, her wrists were in pain, bruised and swollen and sustained nerve damage among other injuries as a result.
13. Plaintiff **LUISA N. FELIZ** was subject to a pat down and subsequent searches by Defendants **POLICE OFFICER JUAN REYES** and **POLICE OFFICER JANE DOE**.
14. Humiliated and distraught, Plaintiff **LUISA N. FELIZ** was then taken to the 75th precinct located at 1000 Sutter Avenue, in the County of Kings, City of Brooklyn and State of New York, where she was fingerprinted, photographed and otherwise ignored and denied any explanation for such detention.
15. At no point did Plaintiff **LUISA N. FELIZ** resist arrest or disobey the arresting officers' commands.
16. While in custody, Plaintiff **LUISA N. FELIZ** was denied food and water.
17. Plaintiff **LUISA N. FELIZ** repeatedly requested medical attention, which Defendants ignored.
18. After over seven (7) hours being detained without probable cause, under inhumane and otherwise unsanitary conditions, deprived of food, water and any reason or explanation, Plaintiff **LUISA N. FELIZ** was finally released.
19. At no time was Plaintiff **LUISA N. FELIZ** read her Miranda Rights.
20. On February 11, 2013, all charges were dismissed.
21. As a result of the foregoing, Plaintiff **LUISA N. FELIZ** was deprived of her liberty, suffered loss of quality and/or enjoyment of life, physical injury, economic injury,

psychological injury and emotional distress, great humiliation, costs and expenses, and was otherwise damaged.

AS AND FOR A FIRST CAUSE OF ACTION
FALSE ARREST, FALSE IMPRISONMENT AND MALICIOUS PROSECUTION

22. Plaintiff **LUISA N. FELIZ** repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as thought fully stated herein.
23. Defendants individually and collectively are liable pursuant to 42 U.S.C. §1983 for unlawfully arresting Plaintiff **LUISA N. FELIZ**, in violation of the Fourth and Fourteenth Amendments to the United States Constitution
24. Defendants individually and collectively are liable for the unlawful arrest of Plaintiff **LUISA N. FELIZ** in violation of Article I § 12 of the New York Constitution.
25. Defendants individually and collectively are liable for the unlawful arrest, false imprisonment and malicious prosecution of Plaintiff **LUISA N. FELIZ** in violation of New York law, rules and regulations.
26. By the actions described above, Defendants caused Plaintiff **LUISA N. FELIZ** to be falsely arrested and/ or falsely imprisoned and/or maliciously prosecuted without probable cause, without reasonable suspicion, illegally, without any proper claim, and without any right or authority to do so. The acts and conduct of Defendants were the direct and proximate cause of damages to Plaintiff and violated his statutory and common law rights as guaranteed by the laws in the U.S. Constitution, the Constitution of the State of New York, and under the Charter, laws, rules and regulations of the City of New York.

27. As a result of the foregoing, Plaintiff **LUISA N. FELIZ** was deprived of her liberty, suffered loss of quality and/or enjoyment of life, physical injury, economic injury, psychological injury and emotional distress, great humiliation, costs and expenses, and was otherwise damaged.

**AS AND FOR A SECOND CAUSE OF ACTION ASSAULT, BATTERY AND
EXCESSIVE FORCE**

28. Plaintiff **LUISA N. FELIZ** repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as thought fully stated herein.
29. Defendants individually and collectively are liable pursuant to 42 U.S.C. § 1983 for using excessive force against Plaintiff **LUISA N. FELIZ** in violation of the Fourth and Fourteenth Amendments to the United States Constitution
30. Defendants individually and collectively are liable for using excessive force against Plaintiff **LUISA N. FELIZ** in violation of Article I § 12 of the New York Constitution.
31. Defendants individually and collectively are liable for assault, battery and using excessive force against Plaintiff **LUISA N. FELIZ** in violation of New York's law, rules, and regulations.
32. Defendants did commit assault and battery upon Plaintiff **LUISA N. FELIZ**. The acts and conduct of Defendants were direct and proximate cause of physical injury to Plaintiff and violated her statutory and common law rights as guaranteed by the laws in the U.S. Constitution, the Constitution of the State of New York, and under the Charter, laws, rules, and regulations of the City of New York.
33. The defendant's actions were reckless and showed a gross disregard for the plaintiff.
34. As a result of the foregoing, Plaintiff **LUISA N. FELIZ** was deprived of her liberty, suffered loss of quality and/or enjoyment of life, physical injury, economic injury,

psychological injury and emotional distress, great humiliation, costs, and expenses, and was otherwise damaged.

35. As a result of the defendants' reckless and wanton conduct the plaintiff is entitled to punitive damages in amounts commensurate with the injuries and damages sustained herein, altogether with the costs and disbursements of this action in an amount that exceeds the jurisdictional limits of all lower courts.

**AS AND FOR A THIRD CAUSE
OF ACTION VIOLATION OF
SUBSTANTIVE DUE PROCESS**

36. Plaintiff **LUISA N. FELIZ** repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as thought fully stated herein.
37. Defendants individually and collectively are liable pursuant to 42 U.S.C. § 1983 for abuses against Plaintiff **LUISA N. FELIZ** that shock the conscience in violation of the Fourteenth Amendment to the United States Constitution.
38. Defendants individually and collectively are liable for abuses against Plaintiff **LUISA N. FELIZ**, that shock the conscience in violation of Article 1, § S of the New York State Constitution.
39. Defendants individually and collectively are liable for abuses against Plaintiff **LUISA N. FELIZ**, that shock the conscience in violation of New York law, rules, and regulations.
40. As a result of the foregoing, Plaintiff **LUISA N. FELIZ** was deprived of her liberty, suffered loss of quality and/or enjoyment of life, physical injury, economic injury,

psychological injury and emotional distress, great humiliation, costs, and expenses, and was otherwise damaged.

AS AND FOR A FOURTH CAUSE OF ACTION
NEGLIGENCE HIRING, SCREENING, RETENTION, SUPERVISION AND
TRAINING

41. Plaintiff **LUISA N. FELIZ** repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as thought fully stated herein.
42. At all times herein mentioned, **THE CITY OF NEW YORK**, and the New York City Police Department owed Plaintiff **LUISA N. FELIZ** a duty to manage, control, and supervise Defendants **POLICE OFFICER JUAN REYES** and **POLICE OFFICER JANE DOE**.
43. Defendant **THE CITY OF NEW YORK** negligently hired, screened, retained, disciplined, supervised and trained Defendants **POLICE OFFICER JUAN REYES** and **POLICE OFFICER JANE DOE**.
44. At all times herein mentioned, **THE CITY OF NEW YORK** and New York City Police Department owed Plaintiff **LUISA N. FELIZ** a duty to hire qualified and sufficient personnel in connection with the operation, management control, teaching at and/or supervision of the Defendant **POLICE OFFICER JUAN REYES** and **POLICE OFFICER JANE DOE**.
45. At all times herein mentioned, **THE CITY OF NEW YORK** and New York City Police Department owed Plaintiff **LUISA N. FELIZ** a duty to train their employees so as to enable them to properly maintain order and control.
46. At all times herein mentioned, **THE CITY OF NEW YORK** and New York

City Police Department owed Plaintiff **LUISA N. FELIZ** a duty to promulgate proper and/ or adequate rules and regulations governing the proper care, guidance and/or supervision to be provided and rendered by those agents, servants, officers and/or employees hired as New York City Police Officers.

47. At all times herein mentioned, **THE CITY OF NEW YORK**, and New York City Police Department owed Plaintiff **LUISA N. FELIZ** a duty to provide a safe and proper environment.
48. At all times herein mentioned, **THE CITY OF NEW YORK** and New York City Police Department owed Plaintiff **LUISA N. FELIZ** a duty *to* prevent from being assaulted and battered while in their custody and control.
49. At all times relevant hereto, **THE CITY OF NEW YORK**, and New York City Police Department and/or said Defendants' agents, servants, employees and/or licensees were, jointly, severally, and concurrently, negligent, careless and reckless in individually and collectively breaching each and every duty owed to Plaintiff **LUISA N. FELIZ**.
50. The aforesaid occurrence was caused wholly and solely by reason of the negligence of Defendant and/or said Defendants' agents, servants, employees and/or licensees, without any fault or negligence on the part of Plaintiff **LUISA N. FELIZ** contributing thereto.
51. Defendant **THE CITY OF NEW YORK** acting through its police department and through Defendants **POLICE OFFICER JUAN REYES** and **POLICE OFFICER JANE DOE** had defacto to policies, practices, customs and usage, which were a direct and proximate cause of the unconstitutional conduct alleged herein.

52. As a result of the foregoing, Plaintiff **LUISA N. FELIZ** was deprived of her liberty, suffered loss of quality and/or enjoyment of life, physical injury, economic injury, psychological injury and emotional distress, great humiliation, costs and expenses, and was otherwise damaged.

AS AND FOR A FIFTH CAUSE OF ACTION
NEGLIGENT INFLICTION OF EMOTIONAL HARM

53. Plaintiff **LUISA N. FELIZ** repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as thought fully stated herein.
54. Defendants negligently caused emotional distress and damage to Plaintiff **LUISA N. FELIZ**. The acts and conduct of Defendants were the direct and proximate cause of emotional injury to Plaintiff **LUISA N. FELIZ** and violated her statutory and common law rights as guaranteed by the laws in the U.S. Constitution, the Constitution of the State of New York, and under the Charter, laws, rules and regulations of the City of New York.
55. As a result of the foregoing, Plaintiff **LUISA N. FELIZ** was deprived of her liberty, suffered loss of quality and/or enjoyment of life, physical injury, economic injury, psychological injury and emotional distress, great humiliation, costs and expenses, and was otherwise damaged.

AS AND FOR A SIXTH CAUSE OF ACTION
INTENTIONAL INFLICTION OF EMOTIONAL HARM

56. Plaintiff **LUISA N. FELIZ** repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as thought fully stated herein.
57. Defendants knowingly, unreasonably, and maliciously sought to disturb Plaintiff

LUISA N. FELIZ by their individual and collective outrageous conduct.

58. This conduct includes, without being limited to, assaulting and battering Plaintiff **LUISA N. FELIZ**, while she was bound by handcuffs in their custody; unreasonably detaining her; depriving her of food, water and proper medical care and subjecting her to multiple unreasonable searches and other intimidation tactics and violated her statutory and common law rights as guaranteed by the laws in the U.S. Constitution, the Constitution of the State of New York, and under the Charter, laws, rules and regulations of the City of New York.
59. Defendants have caused Plaintiff **LUISA N. FELIZ** humiliation, anxiety, fear, sleeplessness and sever distress.
60. As a result of the foregoing, Plaintiff **LUISA N. FELIZ** was deprived of her liberty, suffered loss of quality and/or enjoyment of life, physical injury, economic injury, psychological injury and emotional distress, great humiliation, costs and expenses, and was otherwise damaged.

WHEREFORE, Plaintiff demands judgment against the Defendants herein, including those for punitive damages due to defendants' reckless and wanton conduct; in a sum exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction, together with the costs and disbursements of this action.

Dated: New York, New York
September 27, 2021

A handwritten signature in black ink, appearing to read 'MS', is written over a horizontal line.

Matthew Segal, Esq.
Segal Law Firm, PC
Attorneys for Plaintiff

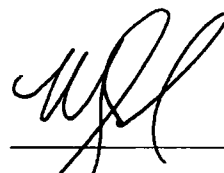
LUISA N. FELIZ
950 Third Avenue, 11th Floor
New York, NY 10022
(646) 810-3337

ATTORNEY'S VERIFICATION

Matthew B. Segal, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney at **SEGAL LAW FIRM**, PC, attorneys of record for Plaintiff **LUISA N. FELIZ**. I have read the annexed **AMENDED COMPLAINT** and know the contents thereof and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief and as to those matters I believe them to be true. My belief as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. This verification is made by me because Plaintiff is not presently in the county wherein I maintain my offices.

Dated: New York, New York
September 27, 2021



Matthew Segal, Esq.

Index No.: 21383/2013
SUPREME COURT OF THE STATE OF
NEW YORK COUNTY OF KINGS

LUISA N. FELIZ,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER JUAN REYES and POLICE OFFICER
JANE
DOE, individually and in their official capacity as New York Police Officer,
the name "JaneDoe" being fictitious, as the true name is presently unknown,

Defendants.

SUPPLEMENTAL SUMMONS AND AMENDED VERIFIED COMPLAINT

SEGAL LAW FIRM, P.C.

Attorneys for Plaintiff

LUISA N. FELIZ

950 Third Avenue, 11th Floor

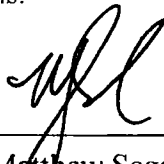
New York, New York, 10007

(646) 810-3337

Fax (212) 355-9000

Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: September 27, 2021


Matthew Segal, Esq.

TO:

The Comptroller of the City of New York
Municipal Building - New York, New York 10007

NYC Police Department
Municipal Building – New York, New York 10007